

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: December 19, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

ORDER SETTING DISCOVERY CONFERENCE

On December 18, 2025, Respondents' counsel requested a conference to resolve a discovery dispute. The parties emailed a summary of their positions, in accordance with the instructions in the scheduling order, to judges@fmc.gov. Dkt. 23. Respondents claim that Complainant's corporate designee was not adequately prepared for his deposition, and Complainant responds that he was adequately prepared, and that Respondents' failure to object to the adequacy of the deposition during the fact-discovery period waives the objection. I responded to the parties asking them to provide their availability for a conference and to send me a copy of the deposition transcript.

The parties are hereby **ORDERED** to appear for a discovery conference pursuant to Rule 141(i)(1) on **January 5, 2026, at 11:00 AM EST**. The conference will be conducted by videoconference and counsel will receive a link.

Respondents may submit a memorandum no later than **December 26, 2025**. The memorandum must not exceed five pages, and I encourage Respondents to focus on explaining their requested relief and why they waited until four months after the corporate deposition to bring this dispute to my attention, rather than detailing why they believe the deponent was not sufficiently prepared.

Complainant may file a memorandum (regardless of whether Respondents file one) no later than **January 2, 2026**. Complainant's memorandum is similarly limited to five pages, and I encourage Complainant to focus on Respondents' proposed remedy and on explaining its

timeliness argument, rather than explaining why it believes the deponent was adequately prepared.

SO ORDERED.

**ALEX
CHINTELLA**

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ALEX CHINTELLA
Date: 2025.12.19
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Alex M. Chintella
Administrative Law Judge